

Settled Land Act, which will be subsequently discussed (*a*),] the trustees and the executor together can sell (*b*), and the question is, upon what principle this proceeds. Is the *executor* the vendor, and if so, has he a *legal* power which enables him to pass the estate at law independently of the trustee? V. C. (late L. J.) Knight Bruce seemed, on one occasion, to think that the cases of *Shaw v. Borrer* and *Ball v. Harris* might have been decided on this footing (*c*), and some recent cases lean in the same direction (*d*). But the notion of the executor passing the legal estate in such a case was never suggested until the last few years, and what was said by the Court of Exchequer in *Doe v. Hughes* was at least true at the time it was spoken, viz., that not a single case could be produced in which a mere charge had been held to give the executors a legal power (*e*). Have the executors [*462] * then an *equitable* power, and is the trustee who has the legal estate bound to convey it as the executor directs? This doctrine would be a very rational one, but there is no trace of it in the cases themselves. Apparently they were decided on the familiar principle that in a Court of Equity there is no difference between a charge of debts and a trust for payment of debts (*a*), and that the trustees

[(*a*) *Post*, p. 470.]

(*b*) *Shaw v. Borrer*, 1 Keen, 559; *Ball v. Harris*, 8 Sim. 485; S. C. 4 M. & Cr. 264; *Page v. Adam*, 4 Beav. 269; and see *Forbes v. Peacock*, 11 Sim. 152; 12 Sim. 528; 11 M. & W. 630; 1 Ph. 717; *Sabin v. Heape*, 27 Beav. 553; *Corser v. Cartwright*, 7 L. R. H. L. 731. In *Shaw v. Borrer*, the trustees and executors were co-plaintiffs, and the prayer of the bill was, that the purchase-money might be paid to the executors. This, if done, by the order of the Court, would indemnify the trustees; but it did not follow that the trustees, on the completion of the sale *out of Court*, could have allowed the executors to receive the money. The question to whom the money should be paid was not adverted to in the argument, nor does it appear to whom it was paid.

(*c*) *Gosling v. Carter*, 1 Coll. 649.

(*d*) See *Robinson v. Lowater*, 17 Beav. 592; 5 De G. M. & G. 272; *Eidsforth v. Armstead*, 2 K. & J. 333; *Wrigley v. Sykes*, 21 Beav. 337; *Storry v. Walsh*, 18 Beav. 508; *Collyer v. Finch*, 5 H. L. Ca. 905; *Hodkinson v. Quinn*, 1 J. & H. 310; *Greetham v. Colton*, 34 Beav. 615.

(*e*) *Doe v. Hughes*, 6 Exch. 231. [See *Re Tanqueray-Willauume and Landau*, 20 Ch. D. 476, where it was regarded as settled law, that a charge alone would not enable the executors to pass the legal estate.]

(*a*) *Elliott v. Merryman*, Barn. 81; *Ex parte Turner*, 9 Mod. 418; *Jenkins v. Hiles*, 6 Ves. 654, note (*a*); *Bailey v. Ekins*, 7 Ves. 323; *Ball v. Harris*, 4 M. & Cr. 267; *Wood v. White*, 4 M. & Cr. 482; *Commissioners of Donations v. Wybrants*, 2 Jon. & Lat. 197.